

26AVCV00485 26AVCV00485

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-08-06

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Case Number: 26AVCV00485 Hearing Date: August 6, 2026 Dept: A14

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES
– NORTH DISTRICT

BRODY MAESTAS, an individual,

Plaintiff,

v.

OSCAR JAVIER VALDEZ; ZAIRA
CAMACHO; BOMBARDIER RECREATIONAL PRODUCTS, INC.; BRP US, INC.; CAN-AM; and
DOES 1-100, inclusive,

Defendants.

Case

Number 26AVCV00485

[TENTATIVE]

STATEMENT OF
DECISION

Date

of Hearing: August 6, 2026

Dept. A-14

Judge William H.
Forman

I.
Background

This is a negligence and products liability action. Defendant BRP US, Inc. (BRP) moves to strike punitive damages allegations in the complaint.

On April 2, 2026, Plaintiff Brody Maestas (Plaintiff) filed a complaint against Oscar Javier Valdez (Valdez), Zaira Camacho (Camacho), Bombardier Recreational Products, Inc. (Bombardier), BRP, and Can-Am (collectively Defendants), asserting four causes of action for (1) Negligence, (2) Strict Products Liability, (3) Failure to Warn, and (4) Negligent Recall.

Plaintiff alleges that on June 26, 2025, he was the passenger of a powersports vehicle owned by Valdez and Camacho, and manufactured and sold by Bombardier, BRP, and Can-Am when the vehicle, operated by Valdez, rolled over, causing Plaintiff to be ejected from the vehicle. (Compl., ¶¶ 14, 19-24.) Plaintiff alleges that Defendants breached their duties of care by negligently or recklessly operating, permitting use of, controlling, designing, manufacturing, marketing, selling, and providing the vehicle, causing the incident and Plaintiff's injuries. (Compl., ¶ 31.)

On May 12, 2026, BRP filed the present motion to strike.

On May 29, 2026, Valdez and Camacho filed a joint answer.

On May 29, 2026, Camacho and Valdez filed a cross-complaint against Bombardier, BRP, and Can-Am for (1) Declaratory Relief, (2) Apportionment, and (3) Implied Indemnity.

On June 18, 2026, Bombardier filed a motion to strike punitive damages allegations in Plaintiff's complaint.

On June 30, 2026, BRP and
Bombardier answered the cross-complaint.

On July 24, 2026, Plaintiff filed
an opposition to BRP's motion.

On July 30, 2026, BRP filed a
reply.

On July 31, 2026, Plaintiff filed
an opposition to Bombardier's motion to strike.

II.

Preliminary

Procedural Issues

Meet and Confer – Before

filing a motion to strike, the moving party is required to meet and confer at least five days before the date the responsive pleading is due in person, by telephone, or by video conference, with the party who filed the pleading for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the motion to strike. (Code Civ. Proc., § 435.5, subd. (a).) The moving party shall file and serve with the motion to strike a declaration stating the means by which the parties met and conferred and that the parties did not reach an agreement to resolve the issues raised, or that the party who filed the pleading objected to failed to respond or otherwise failed to meet and confer in good faith. (Id at § 435.5, subd. (a)(3).)

BRP provides the Declaration of Patrick R. Ball, in which he declares that on May 7, 2026, his Partner Bryan Martin spoke telephonically to Plaintiff's counsel about the allegations in the complaint and BRP's intent to file a motion to strike, but despite a robust meet and confer process, no resolution was made. (Ball Decl., ¶ 3.) The Court finds the meet and confer requirement has been satisfied.

III.

Legal

Standard

Standard for Motion to Strike – A motion to strike lies where either (1) there is “irrelevant, false or improper matter inserted in any pleading,” or (2) where a pleading or part thereof is “not drawn or filed in conformity with the laws of this state, a court rule or order of court.” (Code Civ. Proc., § 436.) When the pleadings are defective, “the defect may be raised by demurrer or motion to strike, or by motion for judgment on the pleadings.” (Coyne v. Krempels (1950) 36 Cal.2d 257, 262.) The grounds for a motion to strike shall appear on the face of the challenged pleading or form any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437, subd. (a).) When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend. (Perlman v. Municipal Court (1979) 99 Cal.App.3d 568, 575.)

To succeed on a motion to strike punitive damages allegations, it must be said as a matter of law that the alleged behavior was not so vile, base, or contemptible that it would not be looked down upon and despised by ordinary decent people. (Angie M. v. Superior Court (1995) 37 Cal. App. 4th 1217, 1228-1229.) “Under the statute, malice does not require actual intent to harm. Conscious disregard for the safety of another may be sufficient where the defendant is aware of the probable dangerous consequences of his or her conduct and he or she willfully fails to avoid such consequences. Malice may be proved either expressly through direct evidence or by implication through indirect evidence from which the jury draws inferences.” (Pfeifer v. John Crane, Inc. (2013) 220 Cal. App. 4th 1270, 1299 (internal quotations omitted).)

IV.

Discussion

Application – BRP

moves to strike certain allegations and the request for punitive damages in paragraphs 48, 62, and 69 of the complaint and paragraph 5 of the prayer for damages pursuant to Code of Civil Procedure sections 435 and 436 on the grounds that the

complaint fails to sufficiently plead any specific facts that would warrant an award of punitive damages against BRP, especially in light of its corporate status. (Motion, p. 2:4-26, 5:2-7.)

BRP argues that while Plaintiff's complaint asserts that BRP intentionally, recklessly, and maliciously failed to warn Plaintiff and others of the risks associated with the alleged vehicle defects, Plaintiff has not included any facts to support the allegation, and fails to allege specifically what dangerous defects existed in the vehicle or its rollover protection system or restraints or what BRP knew. (Motion, p. 8:23-27, 10:4-6.) BRP also argues that Plaintiff has failed to adequately plead facts sufficient to support his punitive damages request pursuant to Civil Code section 3294, subdivision (b), which requires advance knowledge and conscious disregard, authorization, ratification, or act of oppression, fraud, or malice on the part of an officer, director, or managing agent of the corporation. (Motion, p. 10:16-24, 11:5-15.)

In opposition, Plaintiff argues he has sufficiently pled facts to support his request for punitive damages, as he has alleged that the defects were known or knowable at the time of design, manufacture, and sale of the vehicle and its components, that BRP had prior knowledge of the dangers and risks, that BRP intentionally, maliciously, and recklessly failed to make changes or corrective measures, and BRP was well aware of the defects but failed to act or warn Plaintiff or any other user of the dangers. (Opp., p. 4:16-5:10.) Plaintiff also argues that he has adequately alleged punitive damages against BRP as a corporate defendant, as the complaint alleges that BRP had knowledge of the dangers and risks and deliberately declined to make corrective changes, warn consumers, or conduct a recall, and such decisions are made by managing agents. (Opp., p. 8:1-6.)

Plaintiff's argument is unavailing, as it is well established in California that a request for punitive damages must be supported by specific facts at the pleading stage and not based merely on conclusory statements or recitation of the standard in general terms. "In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294." (Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 63.) "In addition to the requirement that the operative complaint set forth the elements as stated in section 3294, it must include specific factual allegations showing that defendant's conduct was oppressive, fraudulent, or

malicious to support a claim for punitive damages. [Citation.] Punitive damages may not be pleaded generally." (Today's IV v. Los Angeles County Metropolitan Transportation Authority (2022) 83 Cal. App. 5th 1137, 1193.) "Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." (Grieves v. Superior Court (1984) 157 Cal. App. 3d 159, 166.)

Furthermore, pursuant to Civil Code section 3294, subdivision (b), and per College Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 721, the availability of punitive damages against corporate entities like BRP must be based on (1) the wrongful act being committed by an officer/managing agent, (2) advanced knowledge of the employee's unfitness by an officer/managing agent, (3) an officer/managing agent authorized the wrongful act, or (4) an officer/managing agent ratified the wrongful act.

As currently drafted, the compliant does not provide any facts whatsoever constituting the basis for the allegations that BRP acted with any malice, oppression, or fraud, any facts establishing that BRP knew or should have known of the defects, and provides no factual allegations which satisfy the requirements of Civil Code section 3294 for recovery of punitive damages against a corporate entity. As BRP points out in its motion and reply, there are no factual allegations as to what the defects were, who knew of them, who ratified or authorized a wrongful act, or even that any officer or managing agent authorized a wrongful act. A mere conclusory allegation that BRP acted with malice, oppression, or fraud does not satisfy the specific factual pleading requirement for the maintenance of a punitive damages claim. While Plaintiff argues that the specific factual information of BRP's knowledge, authorization or ratification, and malice, oppression, or fraud is in BRP's possession and will be obtained through discovery, Plaintiff still must be able to supply the relevant factual basis upon which he is requesting punitive damages. (See G. D. Searle & Co. v. Superior Court (1975) 49 Cal.App.3d 22, 29.) If Plaintiff has no factual basis on which to request punitive damages, to do so is inappropriate. If Plaintiff does have a factual basis on which this request is grounded, it is within his ability to so plead such facts, and he must do so to maintain this request.

Consequently, Plaintiff has failed to plead sufficient facts to maintain a factual basis for punitive damages, and BRP's motion to strike is GRANTED with leave to amend to supply sufficient factual

allegations as to the request for punitive damages.

V.

Conclusion

Defendant BRP US, Inc.'s Motion to Strike is GRANTED with
leave to amend.